

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

EDDIE ACEVEDO MERCADO,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer
THOMAS C. GERLICH, Shield No. 8140;
Police Officer RUSSELL G. CRAWFORD,
Shield No. 14997; Sergeant EUMIR M.
FERRER, Shield No. 2512; John and Jane Doe
1-10,

Defendants.

Index No.:

Date Purchased:

Plaintiff designates Bronx County as place
of venue**SUMMONS**The basis of the venue is:

Situs of the Occurrence

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: January 3, 2022

Briarcliff Manor, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEKBy: **Gabriel P. Harvis, Esq.,*****Attorneys for the Plaintiff***80 Pine Street, 38th Floor

New York, New York 10005

(212) 532-1116

Defendants:

City of New York
100 Church Street
New York, NY 10007P.O. Thomas C. Gerlich
Shield 8140
44th Precinct
2 E. 169th Street
Bronx, New York 10452P.O. Russell G. Crawford
Shield 14997
44th Precinct
2 E. 169th Street
Bronx, New York 10452

Sgt. Eumir M. Ferrer
Shield 2512
44th Precinct
2 E. 169th Street
Bronx, New York 10452

Failure to respond will result in a judgment against you by default and interest from October 10, 2020.

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

EDDIE ACEVEDO MERCADO,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer THOMAS
C. GERLICH, Shield No. 8140; Police Officer
RUSSELL G. CRAWFORD, Shield No. 14997;
Sergeant EUMIR M. FERRER, Shield No. 2512;
John and Jane Doe 1-10,

Defendants.

Index No.:

Date Purchased:

VERIFIED COMPLAINT

Plaintiff Eddie Acevedo Mercado, by his attorneys, ELEFTERAKIS, ELEFTERAKIS &
PANEK, complaining of the defendants, respectfully alleges:

JURISDICTION

1. This action falls within one or more of the exemptions set forth in CPLR § 1602.
2. The action arises under the Fourth, Fifth, Sixth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
3. Jurisdiction is conferred by 42 U.S.C. § 1983.

PARTIES

4. Plaintiff Eddie Acevedo Mercado is a resident of the State of New York.
5. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, defendant

City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

6. The individual defendants were, at all relevant times, employees of the NYPD. In their interactions with plaintiff these defendants were acting in the capacity of agent, servant and employee of defendant City of New York and acted within the scope of their employment and under color of state law. On information and belief, these defendants participated in the misconduct at issue in this case, including fabricating charges against plaintiff and forwarding them to prosecutors. The individual defendants are sued in their individual capacity.

7. John and Jane Doe 1-10 are Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived plaintiff of his rights. John and Jane Doe 1-10 are sued in their individual capacities.

8. At all times here mentioned, the individual defendants were acting under color of state law.

STATEMENT OF FACTS

9. On or about October 10, 2020 at approximately 3:00 a.m., Mr. Acevedo Mercado was lawfully driving a tow truck when the defendants pulled him over in the vicinity of 296 West Fordham Road in the Bronx.

10. The defendants pulled plaintiff out of the vehicle and assaulted him without cause or justification, resulting in injury to Mr. Acevedo Mercado.

11. Thereafter, plaintiff was taken to the 44th Precinct and held for several hours before being released with a desk appearance ticket and several summonses related to alleged violations related to plaintiff's use of the tow truck.

12. Defendants falsely informed employees of the Bronx County District Attorney's office about the circumstances of Mr. Acevedo Mercado's conduct and apprehension.

13. As a result of the false statements of defendants, Mr. Mercado was arraigned and compelled to return to Court.

14. All charges against Mr. Acevedo Mercado were dismissed.

15. As a result of defendants' misconduct, Mr. Acevedo Mercado suffered emotional distress, loss of liberty, mental anguish, fear, pain, bodily injury, anxiety, embarrassment and humiliation.

FIRST CLAIM

42 U.S.C. § 1983 – Excessive Force
(against all defendants)

16. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

17. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiff.

18. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CLAIM

42 U.S.C. § 1983 – Denial of Right to Fair Trial
(against all defendants)

19. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

20. The defendants created false evidence against plaintiff.

21. The defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.

22. In creating false evidence against plaintiff, and in forwarding false information to prosecutors, the defendants violated plaintiff's right to a fair trial under the Due Process Clause of the Fifth, Sixth and Fourteenth Amendments of the United States Constitution.

23. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM

42 U.S.C. § 1983 – Malicious Abuse of Process
(against all defendants)

24. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

25. The individual defendants issued legal process to place plaintiff under arrest.

26. The individual defendants arrested plaintiff in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to cover up their assault of him.

27. The individual defendants acted with intent to do harm to plaintiff without excuse or justification.

28. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM

42 U.S.C. § 1983 – False Arrest
(against all defendants)

29. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

30. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

31. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM**42 U.S.C. § 1983 – Malicious Prosecution**
(against all defendants)

32. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

33. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

34. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

35. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SIXTH CLAIM**42 U.S.C. § 1983 – Failure to Intervene**
(against all defendants)

36. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

37. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

38. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

39. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SEVENTH CLAIM

Assault & Battery

(against defendant City of New York by *respondeat superior*)

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him.

42. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

43. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

EIGHTH CLAIM

State Law Malicious Prosecution

(against defendant City of New York by *respondeat superior*)

44. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

45. By their conduct, as described herein, defendants are liable to plaintiff for having committed malicious prosecution under the laws of the State of New York.

46. Defendants maliciously commenced criminal proceeding against plaintiff, charging him with violations of state law.

47. The commencement and continuation of the criminal proceedings against plaintiff was malicious and without probable cause.

48. All charges were terminated in plaintiff's favor.

49. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of plaintiff.

50. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

NINTH CLAIM

State Law False Imprisonment and False Arrest

(against defendant City of New York by *respondeat superior*)

52. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

53. By their conduct, as described herein, the individual defendants are liable to plaintiff for falsely imprisoning and falsely arresting plaintiff.

54. Plaintiff was conscious of his confinement.

55. Plaintiff did not consent to his confinement.

56. Plaintiff's confinement was not otherwise privileged.

57. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

TENTH CLAIM

Negligent Hiring/Training/Retention

59. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

60. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

61. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

62. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

63. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiff's injuries.

64. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CLAIM

Intentional Infliction of Emotional Distress

65. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

66. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each committed conduct so extreme and outrageous as to constitute the intentional infliction of emotional distress upon plaintiff.

67. The intentional infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

68. Defendants, their officers, agents, servants, and employees were responsible for the intentional infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

69. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CLAIM

Negligent Infliction of Emotional Distress

70. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

71. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent in committing conduct that inflicted emotional distress upon plaintiff.

72. The negligent infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

73. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

74. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CLAIM

Punitive Damages & Attorney's Fees

75. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

76. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

77. Accordingly, plaintiff is entitled to punitive damages and attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, plaintiff, Eddie Acevedo Mercado, demands that judgment, compensatory, exemplary and punitive, in an amount exceeding jurisdictional limits of all lower Courts be entered against defendants on all counts, along with reasonable attorney's fees and costs.

Dated: January 3, 2022
Briarcliff Manor, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK,

By: 
Gabriel P. Harvis, Esq.
80 Pine Street, 38th Floor
New York, New York 10005
(P)(212) 532-1116
(F)(212) 532-1176

Attorneys for plaintiff

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS:
COUNTY OF WESTCHESTER)

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and a partner of the law firm of Elefterakis, Elefterakis, & Panek, attorneys of record for the plaintiff herein, affirms:

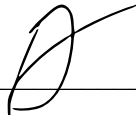
That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of his knowledge.

That affiant's sources of information are investigation and files maintained in your affiant's law office.

That this verification is made by your affiant due to the fact that plaintiff does not presently reside within the county in which your affiant maintains his law office or is presently outside the county in which your affiant maintains his law office.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: Briarcliff Manor, New York
January 3, 2022



Gabriel P. Harvis, Esq.

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Defendants.

ELEFTERAKIS, ELEFTERAKIS & PANEK
80 Pine Street, 38th Floor
New York, New York 10005
212.532.1116

Summons and Verified Complaint

STATE OF NEW YORK, COUNTY OF WESTCHESTER, SS:

GABRIEL P. HARVIS, ESQ., the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a “certification” for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: Briarcliff Manor, New York
January 3, 2022



Gabriel P. Harvis, Esq.

ELEFTERAKIS, ELEFTERAKIS & PANEK
80 Pine Street, 38th Floor
New York, New York 10005